

TENTATIVE RULINGS

**DEPT. CX103
(657-622-5303)**

**Judge David A. Hoffer
August 31, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at <https://www.occourts.org/media-relations/aci.html>. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2021-01185742 Martinez vs. West Coast Prime Meats, LLC	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement has been transmitted to the State Controller's Office's Unclaimed Property Fund. As Plaintiff has shown that the Administrator's work is complete, the court's file may now be closed.

		Plaintiffs are ordered to give notice of this ruling to Defendant.
2	30-2021-01210888 Sanchez vs. DTB Investments, Inc.	The tentative ruling is to continue the Final Report Hearing to December 21, 2026 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. The court also issues an Order to Show Cause why the court should not impose monetary sanctions against plaintiff's counsel for failing to comply with the court's order of September 8, 2025 to file all supporting papers for the Final Report Hearing at least 16 days before the Final Report Hearing date. The hearing is set for December 21, 2026 at 1:30 p.m. Any response to the OSC must be filed at least a week before the hearing. The clerk will give notice of this ruling.
3	30-2023-01313532 Giahi vs. Xpress Med Pharmacy, Inc.	The tentative ruling is to continue the hearing on Plaintiff Omid Giahi's ("Plaintiff") Motion for Final Approval of Class Action and PAGA Settlement to November 23, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be re-read) at least 16 days before the next hearing date. In Plaintiff's April 13, 2026 supplemental brief, Plaintiff stated that a supplemental declaration would be provided by Plaintiff's counsel Jonathan LaCour, and a supplemental declaration by the settlement administrator's representative, Chantal Soto-Najera. However, neither declaration was filed with the court. Accordingly: • There is still no documentation of the litigation costs to support the \$5,684.17 costs request. • There is also no evidence of the high, low and average payments to be paid to aggrieved employees. • There is also no evidence of the names of the two putative class members who opted out and thus will not be bound by the judgment.